



2026:AHC:174983-DB

HIGH COURT OF JUDICATURE AT ALLAHABAD

CRIMINAL MISC. WRIT PETITION No. - 7538 of 2026

Anil Kumar Upadhyay

.....Petitioner(s)

Versus

State Of U.P. And 6 Others

.....Respondent(s)

Counsel for Petitioner(s)	: Akhilesh Kumar Singh, Deepak Kumar Pandey, Utkarsh Singh
Counsel for Respondent(s)	: G.A., Udit Chandra

Court No. - 48

**HON'BLE CHANDRA DHARI SINGH, J.
HON'BLE TARUN SAXENA, J.**

1. The instant writ petition has been filed with the following prayer:-

"(i). Issue a writ, order or direction in the nature of Certiorari quashing the impugned First Information Report dated 31.10.2025 being Case Crime No. 1462 of 2025 under Section 135 of Indian Electricity Act, 2003 at Police Station Anti Power Theft, District Varanasi/ Anti Power Theft Varanasi.

(ii). Issue a writ, order or direction in the nature of Certiorari quashing the Provisional Assessment Notice dated 01.01.2026 issued by the Respondent No. 7.

(iii). Issue a writ, order or direction in the nature of Mandamus restraining / prohibiting the Respondent Authorities not to arrest or take any coercive action against the Petitioner in connection with the F.I.R. dated 31.10.2025 being Case Crime No. 1462 of 2025 under Section 135 of Indian Electricity Act, 2003 at Police Station Anti Power Theft, District Varanasi / Anti Power Theft Varanasi.

(iv) Issue a writ, order or direction in the nature of Mandamus commanding the Respondent No. 4 to take disciplinary proceedings against the Respondent Nos. 5 and 6 for their corrupt practice and violating the mandatory provisions prescribed under the Electricity Act, 2003 and Electricity Supply Code, 2005 for falsely and maliciously roped the Petitioner in the theft of electricity."

2. In pursuance of order dated 29.07.2026, the Executive Engineer, Electricity Urban Distribution Division, Varunapaar Imliyaghat, District Varanasi is present before this Court

3. Learned counsel appearing on behalf of the respondent-department has placed a short counter affidavit during the course of hearing, which is

taken on record.

4. In the short counter affidavit, the reasons for non appearance before the Hon'ble Court, on the last date i.e. 29.07.2026 has been duly explained in paragraph no. 3 of the affidavit. He has also submitted that the payment has already been received from the petitioner i.e. Mr. Anil Kumar Upadhyay in connection with the proceedings arising out of the inspection and as per the provision of assessment notice. On oral instruction, it is further submitted that the report in pursuance of the aforesaid fact shall be sent to the police station concerned for the purpose of compounding.

5. Taking into consideration the averments made in the short counter affidavit as well as the application for exemption, we are satisfied with the reasons assigned therein, the further presence of the Executive Engineer of the department is exempted.

6. At this juncture, learned counsel appearing on behalf of the petitioner submitted and prayed that the instant writ petition may be disposed of in view of the averments made in the affidavit filed by the department.

7. Heard learned counsel for the petitioner, learned counsel for the respondent-department and learned A.G.A. for the State.

8. Taking into the consideration the submission and prayer made by learned counsel for the petitioner that the instant writ petition may be disposed of and no objection made by learned counsel for the respondent-department as well as learned A.G.A. appearing on behalf of the State, we do not find any good reason to keep this petition pending for further adjudication.

9. In view of the above, the instant writ petition is **disposed of**.

(Tarun Saxena,J.) (Chandra Dhari Singh,J.)

August 19, 2026

SK Srivastava